Duty of Candour Procedure

Practice	Kirkcaldy Dental & Implant Clinic, 23–25 Tolbooth Street, Kirkcaldy KY1 1RW
PSM section	Communication › Duty of candour
Policy lead	Duty of Candour Responsible Person [Name]
Version	1.0 (draft for adoption)
Adopted	[date]
Next review	[date – 12 months after adoption]

1. Purpose

The organisational duty of candour is a legal duty on health services in Scotland, including dental practices. When an unexpected or unintended incident results in death or harm that is not related to the course of the condition for which the patient was receiving care, the practice must be open, honest and supportive towards the person affected and the staff involved.

This procedure tells staff what to do when such an incident happens, so that the practice meets the Duty of Candour Procedure (Scotland) Regulations 2018 and supports learning.

2. Scope

- All staff, including locums, trainees and contractors working at the practice.
- All patients, NHS and private (including implant patients).
- It runs alongside, and does not replace, each registrant's **professional** duty of candour under the GDC.
- It runs alongside the complaints procedure and significant event analysis. A duty of candour incident may also be a significant event or the subject of a complaint.

3. Legislation and guidance

As cited in the PSM:

- Health (Tobacco, Nicotine etc. and Care) (Scotland) Act 2016 – introduced the statutory organisational duty of candour.
- The Duty of Candour Procedure (Scotland) Regulations 2018 (SSI 2018 No. 57) – sets out the procedure.
- Apologies (Scotland) Act 2016 – an apology given under the duty of candour procedure is not an admission of negligence or breach of statutory duty.
- Scottish Government, Organisational Duty of Candour Guidance (2025), including Annex A (checklist) and Annex D (apology), and sample incident and nil report templates.
- Scottish Government, Duty of Candour – Frequently Asked Questions (2018), and Factsheets No 1 (procedure), No 2 (apology) and No 3 (monitoring and reporting).
- General Dental Council, professional duty of candour guidance (2016).
- NHS Education for Scotland (TURAS) duty of candour e-learning module and dental-specific scenarios.

PSM pages:

- https://www.psm.sdcep.org.uk/topics/communication/duty-of-candour/
- https://www.psm.sdcep.org.uk/topics/communication/duty-of-candour/the-responsible-person/
- https://www.psm.sdcep.org.uk/topics/communication/duty-of-candour/the-procedure/
- https://www.psm.sdcep.org.uk/topics/communication/duty-of-candour/monitoring-and-reporting/
- https://www.psm.sdcep.org.uk/topics/communication/duty-of-candour/duty-of-candour-in-practice/

4. Responsibilities

4.1 The "responsible person"

In law the "responsible person" is the **organisation** that provides the service, not an individual. For a dental practice this is most likely the practice itself, but for NHS patients it may be the Health Board depending on local arrangements.

- Action: the Practice Owner contacts the NHS Fife duty of candour lead to confirm local arrangements for NHS patients and for reporting. Record the answer here: [NHS Fife arrangement – to be confirmed; date confirmed; contact name].
- For private patients the practice is the responsible person.

The responsible person must:

- carry out the duty of candour procedure;
- undertake any training required by the regulations;
- provide training, supervision and support to anyone carrying out part of the procedure;
- report annually on the duty.

4.2 Named roles in the practice

Role	Responsibility
Practice Owner / Principal Dentist [Nas]	Accountable on behalf of the practice as the responsible person. Makes sure this procedure is in place and resourced.
Duty of Candour Responsible Person [Name]	The practice's named lead. Coordinates each incident, keeps the duty of candour log, prepares and publishes the annual report.
Practice Manager [Name]	Arranges training, keeps contacts up to date, supports the lead.
All staff	Report any incident that may have caused unexpected or unintended harm at once. Take part in reviews openly.

5. Policy / procedure

5.1 What triggers the procedure

The procedure applies when **all** of these are met:

- an unexpected or unintended incident has occurred;
- it has resulted in death or harm (as defined in the Act and the Scottish Government guidance);
- the harm is not related to the course of the condition for which the patient was receiving care.

Examples of dental situations where the duty may or may not apply are on TURAS (dental-specific scenarios). Use them in training.

5.2 Immediate action (any member of staff)

1. Make the patient safe. Give any immediate care needed. In a medical emergency follow the medical emergencies policy.
2. Tell the dentist in charge and the Duty of Candour Responsible Person the same day.
3. Write down the facts: what happened, when, who was involved, what was done. Record clinical facts in the patient's Dentally record.
4. Do not alter records after the event, other than dated additional entries.

5.3 Deciding whether the duty applies

1. If a duty of candour incident is suspected, the lead asks for the opinion of **another registered healthcare professional who was not involved in the incident**.
2. It is that professional's reasonable opinion that decides whether the procedure is activated.
3. Record who gave the opinion, their registration, the date and the reasoning. [Practice decision: name an arrangement for an independent registrant, e.g. a dentist in another practice or via NHS Fife.]
4. If the duty does not apply, the event is still handled as a significant event and, where relevant, through the complaints procedure. Each registrant's professional duty of candour still applies: be open and honest with the patient.

5.4 Carrying out the procedure

The procedure must start **as soon as practicable** after the practice becomes aware that a person has been the subject of an unintended or unexpected incident. The Regulations and the Scottish Government guidance set out the detail; check current guidance for any specific time limits. The key stages are:

(a) Identify and contact the relevant person. This is the patient, or where appropriate a relative, carer or other person acting for them.

(b) Notify the person affected and/or their family or relative, where appropriate. Explain that an incident has occurred and that the duty of candour procedure is being followed.

(c) Arrange a meeting and provide an apology. Offer a meeting with the person and/or their family. Give an open and honest apology from the outset. An apology under this procedure does not amount to an admission of negligence. Use Factsheet No 2 and Annex D of the guidance. Record the offer, the meeting, who attended and what was said.

(d) Carry out a review into the circumstances leading to the incident. Use the practice significant event analysis approach so that the review is constructive and leads to meaningful improvement.

(e) Provide the person with an account of the incident.

(f) Provide information about further actions taken and lessons learned.

(g) Make available, or give information about, support for the person affected and for the staff involved. [Practice decision: list support options, e.g. PASS for patients, occupational health or employee assistance for staff, defence organisation.]

(h) Include the incident in the annual duty of candour report (see 6.2).

5.5 Notifying NHS Fife

For an NHS patient, notify NHS Fife (the Health Board the practice provides services for) of the duty of candour incident. [Contact details – NHS Fife duty of candour lead; check current.] Follow any local reporting form NHS Fife provides.

5.6 Other notifications to consider

- The practice's dental defence organisation [Name] for advice.
- Other reporting routes, depending on the incident (for example radiation incidents under the radiation protection policy, RIDDOR under health and safety, or a safeguarding referral). Use the Scottish Government checklist (Annex A) to make sure nothing is missed.

5.7 Supporting staff

Staff involved in an incident can be distressed. The lead makes sure they are offered support, kept informed of the review, and are treated fairly. The aim is learning, not blame.

6. Records and monitoring

6.1 Incident record

The practice keeps a duty of candour log [location: restricted folder, not in the patient record, except clinical facts]. For each incident record:

- date of incident and date the practice became aware;
- description and the harm caused;
- name and opinion of the independent registered healthcare professional;
- dates of notification, offer of meeting, meeting and apology;
- review findings, account provided, actions and lessons learned;
- support offered to the patient/family and to staff;
- notification to NHS Fife (for NHS patients);
- how each step of the procedure was met.

The log must contain everything needed for the annual report and for learning.

6.2 Annual report

1. Prepare a duty of candour report **annually, as soon as reasonably practicable after the end of the financial year** (31 March). [Practice decision: target date, e.g. by 30 June.]
2. Include the number of incidents, how the practice met each step of the procedure, learning and changes made. Use the sample incident report template in the Scottish Government guidance.
3. If there were no incidents, still publish a **nil report**.
4. **Publish** the report so it is publicly available [practice decision: on kirkcaldydental.co.uk and on request at reception].
5. Because the practice provides both NHS and private treatment, **discuss the arrangements for publishing the report with NHS Fife**. Record the agreed arrangement: [to be confirmed].
6. [Practice decision: check with Healthcare Improvement Scotland whether HIS should also be notified for private services. The PSM says wholly private practices notify HIS.]
7. The annual report can be aligned with other reporting, such as complaints and significant events.

6.3 Review

The lead reviews this procedure and the log annually, and after any incident.

7. Training

- The Practice Owner and the Duty of Candour Responsible Person understand both the organisational duty and the GDC professional duty.
- All relevant staff are encouraged to complete the TURAS duty of candour e-learning module (TURAS account needed) at induction. [Practice decision: refresh every [x] years.]
- The TURAS trainer resource can be used for a practice workshop, including the dental-specific scenarios.
- Training records are kept in each staff member's file.

8. Related policies and templates

PSM templates to download and adapt:

- Duty of Candour Procedure (May 2023) (Templates › Communication)
- Scottish Government Organisational Duty of Candour Guidance (2025): Annex A checklist, Annex D apology, sample incident and nil report templates
- Duty of Candour Factsheets No 1, 2 and 3

Related policies in this set:

- Policy 01 – Feedback, Comments, Concerns and Complaints Procedure
- Policy 07 – Raising Concerns and Whistleblowing Policy
- Policy 03 – Consent Policy
- 37 Risk management and significant events and 34 Medical emergencies

9. Inspection checklist

- ☐ A duty of candour procedure is in place for staff to follow.
- ☐ The practice has contacted the NHS Fife duty of candour lead about responsible person and reporting arrangements, and recorded the outcome.
- ☐ Relevant staff understand the procedure and their professional duty of candour.
- ☐ Staff have been encouraged to complete the TURAS e-learning, with records kept.
- ☐ A recording system (log) for duty of candour incidents is in place.
- ☐ An annual report (or nil report) has been prepared and published after the end of the financial year.
- ☐ Publication arrangements have been discussed with NHS Fife.
- ☐ Incidents are analysed constructively as significant events and learning is shared.

Staff sign-off

Name	Role	Signature	Date

Name	Role	Signature	Date